

THE MAHARASHTRA HIGHWAYS ACT*[Text as on 30th January 2025]*

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(SCHEDULE) Deleted

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LIST OF AMENDMENT ACTS

1. Adapted and modified by the Bombay Adaptation of Laws (State and Concurrent Subjects) Order, 1956.
2. Adapted and modified by the Maharashtra Adaptation of Laws (State and Concurrent Subjects) Order, 1960.
3. Amended by Mah. 42 of 1965
4. Amended by Mah. 24 of 1967
5. Amended by Mah. 37 of 1999 (1-1-2000)
6. Amended by Mah. 24 of 2012 (22-8-2012)
7. Amended by Mah. 28 of 2016 (1-9-2016)¹
8. Amended by Mah. 45 of 2018 (29-05-2018)

¹ vide G.N., P.W.D. No. PPP. 2016/C.R. 251 LB-4/Roads-8, dated the 31st August 2016.

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ACT No. LV OF 1955¹[THE MAHARASHTRA HIGHWAY ACT.]²

[This Act received the assent of the President on the 13th December 1955; assent was first published in the *Bombay Government Gazette*, in Part IV, Extraordinary, on the 22nd December 1955.]

An Act to provide for the restriction of ribbon development along highways, for the prevention and removal of encroachment thereon, for the construction, maintenance and development of highways, for the levy of betterment charges and for certain other matters.

WHEREAS it is expedient to provide for the restriction of ribbon development along highways, for the prevention and removal of encroachment thereon, for the construction, maintenance and development of highways, for the levy of betterment charges and for certain other matters; It is hereby enacted in the Sixth Year of the Republic of India as follows :—

CHAPTER I

PRELIMINARY

1. Short title, extent and commencement.— (1) This Act may be called ³[the Maharashtra Highways Act].

⁴[(2) It extends to the whole of the State of Maharashtra.]

(3) ⁵[This section shall be in force in the whole State.] The State Government may, by notification in the *Official Gazette*, direct that all or any of the remaining provisions of this Act shall come into force in such area and on such date⁶ as may be specified in the notification:

Provided that the State Government may, by notification issued in like manner exclude any road or way or class of roads or ways situate in such area from the operation of all or any of the provisions of this Act.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context,—

(a) “animal” means any domestic or captive animal;

(b) “building” includes any erection of whatsoever material and in whatsoever manner constructed (including a farm building for agricultural purposes) and also includes plinths, doorsteps, walls (including compound walls and fences) and the like;

(c) “building line” means a line on either side of any highway or part of a highway fixed in respect of such highway or part by a notification under sub-section (1) of section 7;

(d) “cantonment” means a cantonment established under the Cantonments Act, 1924 (II of 1924);

¹ For Statement of Objects and Reasons of the L. A. Bill No. LXIII of 1954, see *Bombay Government Gazette*, 1954, Extraordinary No. 310, Part V, dated the 13th August 1954, page 330.

² The Bombay Highways Act, 1955, and the rules made thereunder as in force in the Bombay area of the State of Maharashtra, are hereby extended to the rest of that State (See section 2 of Mah. 42 of 1965).

³ The short title was amended for “the Bombay Highways Act, 1955” by Mah. 24 of 2012, Schedule, entry 58, w.e.f. 1-5-1960.

⁴ Sub-section (2) was substituted for the original by Mah. 42 of 1965, s. 3(a).

⁵ These words were substituted for the words “This section shall come into force at once” by Mah. 42 of 1965, s. 3(b).

⁶ 8th July 1960, sections 2 to 74 (both inclusive) and the Schedule for the Bombay Suburban District and the Thana District vide G. N., B. & C. D. No. BHA. 3760-C(1), dated the 7th July 1960.

11th May 1962, sections 2 to 74 (both inclusive) and the Schedule for the City of Bombay, vide G. N., B. & C. D., No. BHA. 3761/534-C-(II), dated the 3rd May 1962.

3rd September 1964, sections 2 to 74 (both inclusive) and the Schedule for the Kolaba District, vide G. N., B. & C. D., No. BHA. 3763/52902-C(3) dated the 28th August 1964.

28th April 1967, vide G. N., B. & C. D., No. BHA. 3765/1163 48-C-(1), dated the 19th April 1967.

¹[(d-1) “Competent Authority” means the Collector of the revenue district, and includes any officer not below the rank of Deputy Collector appointed by the Government, for the purpose of the Land Pooling Scheme;]

(e) “control line” means a line on either side of highway or part of a highway beyond the building line fixed in respect of such highway or part by a notification under sub-section (1) of section 7;

(f) “encroachment” means any unauthorised occupation of any highway on part thereof, and includes an unauthorised—

(i) erection of a building or any other structure, balconies, porches, projections on or over or overhanging the highway;

(ii) occupation of a highway beyond the prescribed period, if any, for stacking building materials or goods of any other description, for exhibiting articles for sale, for erecting poles, ownings, tents, pandals, hoardings and other similar erections of for parking vehicles or stabling animals or for any other purpose; and

(iii) excavations or dumps of any sort made or extended on any highway or underneath such highway;

(g) “to erect” with its grammatical variations in relation to a building means to construct, reconstruct, extend or alter structurally a building;

(h) “excavation” in relation to any piece of land does not include any workings which do not piece the surface of that piece of land; but includes wells and tanks;

(i) “highway” means any ²[road, way or land] which is declared to be a highway under section 3. The expression includes,—

(i) any land acquired or demarcated with a view to construct a highway along it;

(ii) the slopes, berms, borrow-pits, foot-paths, pavements and side, catch and boundary drains attached to such road or way;

(iii) all bridges, culverts, causeways, carriageways and other structures built on or across such road or way; and

(iv) the trees, fences, posts, boundary, furlong and milestones, and other highway accessories and materials and material stacked on the road or way;

(j) “Highway Authority” means the authority appointed as such or to which the functions of such authority are entrusted under section 4;

(k) “highway boundaries” means the boundaries of a highway fixed in respect of such highway by a notification under sub-section (1) of section 7;

³[(k-1) “Land Pooling Scheme” or Scheme” means voluntary assembly of land under different ownership falling within the highway boundary and the site of New Town, for the purposes of making such land available for the construction of highway and development of New Town, in lieu of entitlement of developed non-agricultural plot of land of a size determined as per the Land of a size determined as per the Land Pooling Scheme, declared by the Government, from time to time;]

(l) “means of access” includes any means of access, whether private or public, for vehicles or for foot passengers and includes any street;

¹ Clause (d-1) was inserted by Mah. 28 of 2016, s. 2 (a).

² These words were substituted for the words “road or way over which the public have a right of way or are granted access and” by Mah. 42 of 1965, s. 4.

³ Clause (k-1) was inserted by Mah. 28 of 2016, s. 2(b).

(m) “middle of highway” means the point half-way between the highway boundaries;

¹[(m-1) “New Town” means the area declared or to be declared as New Town by notification in the *Official Gazette*, under section 113 of the Maharashtra Regional and Town Planning Act, 1966 (Mah. XXXVII of 1966);]

(n) “occupier” includes,—

(a) any person who for the time being is paying or is liable to pay to the owner rent or any portion of the rent of the premises in respect of which such rent is paid or is payable ;

(b) an owner living in or otherwise using his premises ;

(c) a rent-free tenant ;

(d) a licensee in occupation of any premises ; and

(e) any person who is liable to pay to the owner damages for the use and occupation of any premises ;

(o) “owner” means,—

(a) when used with reference to any premises, the person who receives the rent of the said premises or who would be entitled to receive the rent thereof if the premises were let and includes,—

(i) an agent or trustee who receives such rent on account of the owner ;

(ii) an agent or trustee who receives the rent of, or is entrusted with, or concerned for, any premises devoted to religious or charitable purposes ;

(iii) a receiver, sequestrator or manager appointed by any court of competent jurisdiction ; and

(iv) a mortgagee-in-possession ;

(b) when used with reference to an institution or a body corporate, the manager of such institution or body corporate ;

²[(o-1) “person entitled” means the person who is entitled to receive the amount of compensation as the per the applicable law;]

(p) “prescribed” means prescribed by rules made under this Act ;

(q) “railway administration” has the same meaning as in the Indian Railway Act, 1890 (IX of 1890);

(r) “vehicle” includes a barrow, sledge, plough, drag and a wheeled conveyance of any description capable of being used on a highway ;

³[(s) the expressions “affected family” and “persons interested” used in this Act shall have the same meaning as the said expressions have in the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (30 of 2013).]

CHAPTER II

DECLARATION OF HIGHWAYS, HIGHWAY AUTHORITIES AND THEIR POWERS AND FUNCTIONS

3. Declaration of roads, ways or lands as highways.— The State Government may, by notification in the *Official Gazette*, declare any road, way or land to be a highway and classify it as—

(i) a State highway (Special),

(ii) a State highway,

¹ Clause (m-1) was inserted by Mah. 28 of 2016, s. 2(c).

² This clause was inserted by Mah. 45 of 2018, s. 2(1).

³ This clause was substituted by Mah. 45 of 2018, s. 2(2).

- (iii) a major district road,
- (iv) other district road, or
- (v) a village road.

4. Appointment of Highway Authorities.— The State Government may, by notification in the *Official Gazette*, appoint for the purpose of this Act or any of its provisions any person or any authority to be a Highway Authority for all the highways ¹[in the State] or, in parts ²[thereof] or for any particular highway or highways ³[therein], specified in the notification:

⁴[Provided that, in case in any highways or highways notified under section 3, to be developed by or transferred, assigned, handed over for construction, maintenance, development or improvement to the Maharashtra State Road Development Corporation Limited, in that case, the Maharashtra State Road Development Corporation Limited shall be the Highway Authority, for that highway or highways.]

5. Powers and Duties of Highway Authorities.— Subject to such conditions as may be specified in the notification appointing a Highway Authority and subject to the general or special orders of the State Government, a Highway Authority shall exercise powers and discharge duties in accordance with the provisions of this Act for the restriction of ribbon development along highways, for the prevention and removal of encroachments and for all matters necessary and incidental to any or all of the above subjects. Also subject to the approval of the State Government and to such general or special orders which the State Government may make in this behalf, it shall be lawful to a Highway Authority to undertake the construction, maintenance, development or improvement of highways ⁵[and development of New Town].

6. Officers and servants of Highway Authority.— For the purpose of enabling a Highway Authority to exercise the powers conferred and to discharge the duties imposed upon it by or under the provisions of this Act, the State Government may appoint such officers and servants as it deem necessary to work under such Authority.

CHAPTER III

RESTRICTION OF RIBBON DEVELOPMENT

7. Power to fix boundary, building and control lines of highways.— ⁶[(1) In any area in which the provisions of this Act have been brought into force, and,

- (i) where either any road, way or land has been declared to be a highway under section 3 or the construction or development of a highway is undertaken or proposed to be undertaken, and
- (ii) the State Government considers it necessary to fix, as respects such highway, the highway boundary, the building line or control line,

the State Government may, by notification in the *Official Gazette*, fix, as respects such highway, the highway boundary, the building line and the control line:

Provided that, having regard to the situation or the requirements of a highway or the condition of the local area through which a highway passes, it shall be lawful for the State Government to fix different building or control lines in respect of any highway, or portions thereof.]

(2) Not less than sixty days before issuing a notification under sub-section (1) the State Government shall cause to be published in the *Official Gazette* and in the prescribed manner in the village and at the headquarters of the ⁷[taluka, tahsil or mahal] of the district in which the highway is situate a notification stating that it propose to issue a notification in terms of sub-section (1), and specifying therein all the lands situated between the highway boundary and the control line proposed to be fixed under such

¹ These words were substituted for the words “in the Bombay area of the State of Maharashtra” by Mah. 42 of 1965, s. 5.

² This word was substituted for the words “of the State” by the Bombay Adaptation of Laws (State and Concurrent Subjects) Order, 1956.

³ This word was substituted for the words “in the Bombay area of the State of Maharashtra” by Mah. 42 of 1965, s. 5.

⁴ This proviso was inserted by Mah. 28 of 2016, s. 3.

⁵ These words were inserted by Mah. 28 of 2016, s. 4.

⁶ Sub-section (1) was substituted for the original by Mah. 42 of 1965, s. 6(1).

⁷ These words were substituted for the words “taluka or mahal” by Mah. 42 of 1965, s. 6(2).

notification and in the case of new works, also lands benefiting by the construction or development of the highway, as the case may be, together with a notice requiring all persons affected by such notification, who wish to make any objections or suggestions with respect to the issue of such a notification to submit their objections or suggestions in writing to the Highway Authority or appear before such authority, within two months of the publication of the notification in the *Official Gazette* or within one month from the date of the publication of the notification in the village, whichever period expires later.

(3) The Highway Authority shall, after all such objections or suggestions have been considered or heard, as the case may be, and after such further inquiry, if any as it thinks necessary, forward to the State Government a copy of the record of its proceedings held by it together with a report setting forth its recommendations on the objections or suggestions.

(4) If, before the expiration of the time allowed by sub-section (2) for the filing or hearing of objections or suggestions, no objections or suggestion has been made, the State Government shall proceed at once to issue the notification under sub-section (1). If any such objection or suggestions has been made, the State Government shall consider the record and the report referred to in sub-section (3) and may either—

(a) abandon the proposal to issue the notification under sub-section (1), or

(b) issue the notification under sub-section (1) with such modification, if any, as it thinks fit.

(5) In considering the objections or suggestions, the decision of the State Government on the question, of issuing the notification under sub-section (1) shall be final and conclusive.

8. Map to be prepared and maintained.— Within two months from the date of publication of the notification under sub-section (1) of section 7 fixing the highway boundary, building line and control line with respect to any highway, the Highway Authority shall cause a map to be made of the area through which such highway passes and shall cause to be marked thereon the highway boundaries and building and control lines and any other particulars necessary for the purposes of this Act and within one month from the date of making any alteration or addition thereto cause the said map to be corrected and such map with the date indicated thereon of the last time when the same shall have been so corrected shall be kept in the office of the Highway Authority. Such map, which shall bear the seal of the Highway Authority, shall be open to inspection. Copies of such map shall also be kept for inspection at such other places as may be prescribed.

9. Restrictions on buildings between highway boundary and building line and between building and control lines.— (1) Notwithstanding anything contained in any law, custom, agreement or instrument for the time being in force, on or after the appointed day, the following restrictions shall, subject to the provisions of this Act, be in force, that is to say,—

no person shall, without the previous permission in writing of the Highway Authority,—

(a) upon any land lying between the highway boundary and the building line proposed to be fixed under sub-section (2), or fixed under sub-section (1), of section 7, as the case may be,

(i) construct, form or lay out any means of access to, or from, a highway, or

(ii) erect any building, or

(iii) materially alter any existing building, or

(iv) make or extend any excavation, or

(v) construct, form or lay out any works; or

(b) upon any land lying between the building line and the control line proposed to be fixed under sub-section (2), or fixed under sub-section (1), of section 7, as the case may be,

(i) construct, form or lay out any means of access to, or from, a highway, or

(ii) erect any building, or

(iii) materially alter any existing building;

(c) use any building or alter the use of any building already erected in manner which in the opinion of the Highway Authority will, in any manner whatsoever, infringe any of the provisions

of this Act, or interfere with the use of a highway adjoining the land on which such building is erected.

(2) Every person desiring to obtain such permission under sub-section (1) shall make an application in writing to the Highway Authority in such form and containing such information as may be prescribed in respect of the building, alteration, excavation, works or means of access, as the case may be, to which the application relates.

(3) On receipt of such application, the Highway Authority, after making such enquiries as it may consider necessary, shall, order in writing either—

(a) grant the permission, subject to such conditions, if any, as may be specified in the order, or

(b) refuse to grant such permission :

Provided that—

(i) permission under clause (a) of sub-section (1) to the making of any excavation or construction, formation or laying out of works in land for the purpose of repairing, renewing, enlarging or maintaining any underground sewer, drain, electric line, pipe, duct or other apparatus shall not be withheld nor be made subject to any conditions save such as may be necessary for securing that the sewer, drain, electric line, pipe, duct or other apparatus shall be laid in such manner and at such levels that the construction, maintenance, development improvement of a road thereover will not be prevented or prejudicially affect thereby ;

(ii) permission under clause (b) of sub-section (1) to the erection or alteration of a building or laying out any means of access to a highway which conform to the requirements of public health and welfare and of safety and convenience of traffic on the adjoining road shall neither be withheld nor made subject to unreasonable conditions :

Provided that in the case of means of access required for agricultural purpose such permission shall neither be withheld nor be made subject to any conditions save such as may be necessary for securing that the means of access shall be used for agricultural purposes only ;

(iii) permission under clause (b) of sub-section (1) to the re-erection or alteration of a building which was in existence before the appointed day shall neither be withheld nor made subject to restrictions unless such re-erection or alteration involves any material alteration to the outside appearance of the building.

(4) When the Highway Authority refuses permission, the reasons therefor shall be recorded and communicated to the applicant :

Provided that nothing herein contained shall debar a person from making a fresh application after omitting therefrom the objectionable features communicated to him as aforesaid on account of which such permission was refused.

(5) If at the expiration of a period of three months after an application for such permission specifying the name and address of the applicant has been made to the Highway Authority, or such further period not exceeding three months as may have been notified by the Highway Authority has lapsed and no decision has been notified in writing, posted or delivered to the applicant at the address, then (except as may otherwise be agreed in writing between the Highway Authority and the applicant) permission shall be deemed to have been given without the imposition by the Highway Authority of any conditions.

(6) The Highway Authority shall maintain a register with sufficient particulars of all permissions given or refused by it under this section and the register shall be available for inspection free of charge by all persons interested and such persons shall be entitled to take extracts therefrom.

Explanation.— For the purpose of this section, the “appointed day” shall, with reference to any highway boundary, building line or control line, mean—

(1) the day on which a notification is published in the *Official Gazette*, under sub-section (2) of section 7 proposing to fix such highway boundary, building line or control line, and

(2) if any modification is made in such highway boundary, building line or control line, the day on which the notification is published under sub-section (1) of section 7 fixing such highway boundary, building line or control line.

10. Appeal.— (1) If any applicant is aggrieved by any decision of the Highway Authority under section 9, withholding permission, or imposing any condition, he may appeal to the State Government within 30 days from the date on which such decision was communicated to him.

(2) The State Government may, after giving an opportunity to the applicant to be heard, make such order as it thinks fit upon the appeal and the decision of the State Government shall be final.

11. Exemptions for works in progress, etc.— (1) No restrictions in force under section 9 shall apply to the erection or making of a building or excavation or to the construction, formation of laying out, of any means of access or works begun before the appointed day referred to in section 9.

(2) No restrictions in force under section 9, except restrictions as to the construction, formation or laying out, or means of access, shall apply to any land forming part of a burial or cremation ground or other place for the disposal of the dead being land which has, before the passing of this Act, been used for such purpose.

(3) No restrictions in force under section 9 shall apply to any excavation or works necessary in connection with any drains, ditches, or other drainage works for agricultural purposes or to any works necessary for the repair, renewal, enlargement or maintenance of any sewer, drain, electric line, pipe, duct, or other apparatus, constructed in or upon the land before the date on which the restrictions came into force or with the consent of the Highway Authority on or after that date.

12. Setting back of buildings to building line or control line.— Whenever any building or any part thereof erected before the appointed day referred to in section 9 lies between the building line and the middle of the highway, the Highway Authority may, whenever any such building or part has either entirely or in greater part been taken down, burnt down or fallen down, by notice require such building or part when re-erected to be set back to the building line or control line.

13. Regulation or diversion of right of access to highway.— (1) The Highway Authority may, if it is considered essential in the interests of safety or convenience of traffic, regulate or divert any existing right of access to a highway across land lying between the control line and the highway boundary:

Provided that the existing right of access shall not be diverted until alternative access has been given.

(2) Where the existing right of access is diverted, the point at which alternative access is given to the highway shall not be unreasonably distant from the existing point of access.

(3) The Highway Authority shall, by notification in the *Official Gazette*, publish the date on which the existing right of access has been diverted and alternative access has been given.

14. Powers of Highways Authority and officers and servants appointed under section 6 in respect of surveys.— For the purpose of carrying out any of the provisions of this Act, the Highway Authority and the officers and servants appointed under section 6 may—

(a) enter upon, survey and take measurements and levels of any land ;

(b) mark such levels, dig or bore into the sub-soil of any land ;

(c) demarcate the boundaries of the highway by planting stones or other suitable marks in different colours of a durable nature at intervals all along the highway in such a manner that the imaginary line joining such stones or marks shows the road boundary correctly ;

(d) where there are bends or kinks on the road boundary, locate the stones or marks in different colours so as to give the correct configuration of the boundary if they are joined by straight lines ;

(e) give consecutive numbers to such boundary stones or marks and maintain them on the ground as if they constituted part of the highway ;

(f) lay out the building and control lines by placing marks in different colours and cutting trenches;

(g) if the survey cannot otherwise be made, or measurements or levels taken or boundaries marked and lines laid out, cut down and clear away any standing crop, tree, fence or jungle or any part thereof ;

¹[(g-1) demarcate the boundaries of New Town and demarcation of roads and plots in the final layout of the land covered under the Land Pooling Scheme by placing boundary stones and marks;

(h) do all other acts necessary in that behalf :

Provided that the Highway Authority shall not, except with the consent of the occupier thereof, enter or permit any of the officers or servants to enter any premises without previously giving such occupier at least forty-eight hours' notice in writing of its intention to do so.

²[15. **Power to acquire land, etc.**— (1) Any land required by the Highway Authority for discharging its functions under this Act shall be deemed to be the land needed for a public purpose and such land may, on a request being received from the Authority, be acquired by the State Government for the said Authority under the provisions of this Act.

(2) On the Highway Authority approaching the State Government as provided under sub-section (1) with such requisition and the State Government being satisfied that for a public purpose any land is required for the building, maintenance, management or operation of a highway or part thereof, it may, by notification in the *Official Gazette*, declare its intention to acquire such land :

Provided that, if the land intended to be acquired is situated in the Scheduled Area, before declaring its intention to acquire such land, the State Government or the officer authorised in this behalf shall consult, in such manner as may be laid down by the State Government by a general or special order issued in this behalf,—

(i) the *Gram Sabha* or *Panchayat* concerned, if the land is falling within the limits of a village;

(ii) the *Panchayat Samiti* concerned, if the land is falling within the limits of more than one villages in a Block;

(iii) the *Zilla Parishad* concerned, if the land is falling within the limits of more than one Blocks, in a District.

Explanation.— For the purposes of this sub-section,—

(i) the expressions “*Gram Sabha*” and “*Scheduled Area*” shall have the meaning respectively assigned to them in the ³Bombay Village Panchayats Act, 1958 (Bom. III of 1959);

(ii) the expressions “*Panchayat Samiti*” and “*Zilla Parishad*” shall have the meaning respectively assigned to them in the Maharashtra Zilla Parishad and Panchayat Samitis Act, 1961 (Mah. V of 1962).

(3) Every notification issued under sub-section (2), shall give a brief description of the land.

(4) Any officer authorised by the State Government, by notification in the *Official Gazette*, for acquisition of land for the purposes of this Act (hereinafter called as “the Land Acquisition Officer”), shall cause the substance of the notification to be published in two local newspapers, one of which will be in a vernacular language.

16. Power to enter or survey, etc.— On the issue of the notification under sub-section (2) of section 15, it shall be lawful for the Land Acquisition Officer or any person authorised by the State Government in this behalf, to—

(a) make any inspection, survey, measurement, valuation or enquiry ;

(b) take levels ;

(c) dig or bore into sub-soil ;

¹ Clause (g-1) was inserted by Mah. 28 of 2016, s. 5.

² These sections were substituted for sections 15 to 19 by Mah. 37 of 1999, s. 2.

³ The short title of this Act was amended as “the Maharashtra Village Panchayats Act” by Mah. 24 of 2012, Schedule entry 74, w.e.f. 1-5-1960.

- (d) set out boundaries and intended lines of work ;
- (e) mark such levels, boundaries and lines by placing marks and cutting trenches ; or
- (f) do such other acts or things as may be prescribed.

17. Hearing of objections.— (1) Any person interested in the land other than the persons whose objections or suggestions have already been considered or heard by the Highway Authority in response to the notification issued by the Highway Authority under section 7 may, within twenty-one days from the date of publication of the notification under sub-section (2) of section 15, object to the use of the land for the purpose or purposes mentioned in that sub-section.

(2) Every objection under sub-section (1) shall be made to the Land Acquisition Officer in writing and shall set out the grounds thereof and the Land Acquisition Officer shall give the objector an opportunity of being heard, either in person or, by a legal practitioner, and may, after hearing all such objections and after making such further enquiry, if any, as the Land Acquisition Officer thinks necessary by order, either allow or disallow the objections.

Explanation.— For the purposes of this sub-section, “legal practitioner” has the same meaning as in clause (i) of sub-section (1) of section 2 of the Advocates Act, 1961(25 of 1961).

(3) Any order made by the Land Acquisition Officer under sub-section (2) shall be final.

18. Declaration of acquisition.— (1) Where no objection under sub-section (1) of section 17 has been made to the Land Acquisition Officer within the period specified therein or where the Land Acquisition Officer has disallowed the objection under sub-section (2) of that section the Land Acquisition Officer shall, as soon as may be, submit a report accordingly to the State Government and on receipt of such report, the State Government shall declare, by notification in the *Official Gazette*, that the land should be acquired for the purpose or purposes mentioned in sub-section (2) of section 15.

(2) On the publication of such declaration under sub-section (1), the land shall vest absolutely in the State Government free from all encumbrances.

(3) Where in respect of any land, a notification has been published under sub-section (2) of section 15 for its acquisition but no declaration under sub-section (1) has been published within a period of one year from the date of publication of that notification, the said notification shall cease to have any effect:

Provided that, in computing the said period of one year, the period or periods during which any action or proceedings to be taken in pursuance of the notification issued under sub-section (2) of section 15 is stayed by an order of a court shall be excluded.

(4) A declaration made by the State Government under sub-section (1), shall not be called in question in any court or by any other authority.

19. Powers to take possession.— (1) Where any land has been vested in the State Government under sub-section (2) of section 18, and the amount determined by the Land Acquisition Officer under section 19B with respect to such land has been deposited under sub-section (1) of section 19C with the Land Acquisition Officer by the State Government, the Land Acquisition Officer may by notice in writing direct the owner as well as any other person who may be in possession of such land to surrender or deliver possession thereof to the Land Acquisition Officer or any person duly authorised by him in this behalf within sixty days of the service of the notice.

(2) if any person refuses or fails to comply with any direction made under sub-section (1), the Land Acquisition Officer shall apply—

(a) in case of the land situated in any area falling within the metropolitan area to the Commissioner of Police ;

(b) in case of the land situated in any area other than the area referred to in clause (a), to the Collector of a District ; and

such Commissioner or Collector, as the case may be, shall enforce the surrender of the land, to the Land Acquisition Officer or to the person duly authorised by him.

19A. Right to enter into land where land vested in State Government.— Where the land has been vested in the State Government under section 18, it shall be lawful for the ¹[Land Acquisition Officer or the Highway Authority or any person authorised by them] in this behalf, to enter and do other act necessary upon the land for carrying out the building maintenance, management or operation of a highway or a part thereof, or any other work connected therewith.

19B. Determination of amount payable as compensation.— (1) Where any land is acquired by the State Government under this chapter there shall be paid an amount of compensation which shall be determined in accordance with the provisions of this section.

(2) Where the amount of compensation has been determined by agreement between the State Government and the person to be compensated, it shall be determined in accordance with such agreement.

(3) Where no such agreement can be reached, the State Government shall refer the case to the Land Acquisition Officer for determination of the amount of compensation to be paid for such acquisition and also the person or persons to whom such compensation shall be paid :

Provided that, no compensation exceeding such amount as the State Government may by general order specify, shall be determined by the Land Acquisition Officer without the previous approval of the State Government or such Officer as the State Government may appoint in this behalf :

²[Provided further that, the State Government while issuing the general order under the preceding proviso shall adhere to the provisions of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (30 of 2013), relating to the determination of amount of compensation in accordance with the First Schedule and rehabilitation and resettlement specified in the Second and Third Schedules, being beneficial to the affected families.]

(4) Notwithstanding anything contained in sub-section (3), if, after the case is referred to the Land Acquisition Officer under the said sub-section (3) but before he finally determined the amount of compensation, such amount is determined by agreement between the State Government and the person to be compensated, the compensation shall be determined by the Land Acquisition Officer in accordance with such agreement.

(5) Where the right of user of any right in the nature of an easement on any land is acquired under this Act, there shall be paid, to the owner and any other person whose right of enjoyment in that land has been affected in any manner whatsoever by reason of such acquisition, an amount calculated at ten per cent. of the amount determined under sub-section (2) or sub-section (3), as the case may be, for that land.

(6) Before proceeding to determine the amount under sub-section (3) or sub-section (5), the Land Acquisition Officer shall give a public notice published in two local newspapers, one of which shall be in a vernacular language, inviting claims from all persons interested in the land to be acquired.

(7) Such notice shall state the particulars of the land and shall require all persons interested in such land to appear in person or by an agent or by a legal practitioner referred to in sub-section (2) of section 17 before the Land Acquisition Officer, at a time and place, and to state the nature of their respective interest in such land.

(8) If the amount determined by the Land Acquisition Officer under sub-section (3) or sub-section (5) is not acceptable to either of the parties, the amount shall, on an application by either of the parties, be determined by the arbitrator to be appointed by the State Government.

(9) Subject to the provisions of this Act, the provisions of the Arbitration and Conciliation Act, 1996 (26 of 1996) shall apply to every arbitration under this Act.

(10) The Land Acquisition Officer or the arbitrator while determining the amount under sub-section (3) or sub-section (8), as the case may be, shall take into consideration,—

(a) the market value of the land on the date of publication of the notification under section 15;

¹ These words were substituted for the words “Land Acquisition Officer or any person authorised by him” by Mah. 45 of 2018, s. 3.

² This proviso was added by Mah. 45 of 2018, s. 4(1).

(b) the damage, if any, sustained by the person interested at the time of taking possession of the land, by reason of the severing of such land from other land ;

(c) the damage, if any, sustained by the person interested at the time of taking possession of the land, by reason of the acquisition injuriously affecting his other immovable property in any manner, or his earnings ;

(d) if, in consequences of the acquisition of the land, the person interested is compelled to change his residence or place of business, the reasonable expenses, if any, incidental to such change:

¹[Provided that, the Land Acquisition Officer or the arbitrator shall consider the general order of the State Government issued under the first proviso to sub-section (3) relating to the determination of amount of compensation in accordance with the First Schedule and rehabilitation and resettlement specified in the Second and Third Schedules under the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (30 of 2013).]

19C. Deposit and payment of amount.— (1) The amount determined under section 19B shall be deposited by the State Government, in the prescribed manner, with the Land Acquisition Officer before taking possession of the land.

(2) As soon as may be after the amount has been deposited under sub-section (1), the Land Acquisition Officer shall on behalf of the State Government pay the amount to the person or persons entitled thereto.

(3) Where several persons claim to be interested in the amount deposited under sub-section (1), the Land Acquisition Officer shall determine the persons who in his opinion are entitled to receive the amount payable to each of them.

(4) If any dispute arises as to the apportionment of the amount or any part thereof or to any person to whom the same or any part thereof is payable, the Land Acquisition Officer shall refer the dispute to the decision of the principal civil court of original jurisdiction within the limits of whose jurisdiction the land is situated.

(5) Where the amount determined under sub-section (8) of section 19B by the arbitrator is in excess of the amount determined by the Land Acquisition Officer, the arbitrator may award interest at nine per cent. per annum on such excess amount from the date of taking possession under section 19 till the date of the actual deposit thereof.

(6) Where the amount determined by the arbitrator is in excess of the amount determined by the Land Acquisition Officer, the excess amount together with an interest, if any, awarded under sub-section (5), shall be deposited by the State Government, in the prescribed manner, with the Land Acquisition Officer and the provisions of sub-sections (2) to (4) shall apply to such deposit.

19D. Land Acquisition Officer to have certain powers of civil court.— The Land Acquisition Officer shall have, for the purposes of this Act, all the powers of a civil court while trying a suit under the Code of Civil Procedure, 1908 (5 of 1908), in respect of the following matters, namely :—

(a) summoning and enforcing the attendance of any person and examining him on oath ;

(b) requiring the discovery and production of any document ;

(c) reception of evidence on affidavits ;

(d) requisitioning any public record from any court or office ;

(e) issuing commission for examination of witnesses.

19E. ²* * *

¹ This proviso was added by Mah. 45 of 2018, s. 4(2).

² Section 19E was deleted by Mah. 45 of 2018, s. 5.

¹[CHAPTER IIIA

LAND POOLING SCHEME

19F. Identification of area for Scheme.— (1) The Highway Authority shall be the Authority for the purpose of the Land Pooling Scheme.

(2) The Highway Authority may identify the area for the Scheme either on its own or based on the applications received from the land owners or persons interested.

(3) The Highway Authority shall initiate the Scheme for the identified area.

(4) The Highway Authority shall submit the proposal of delineating the boundaries and the area comprised in the Scheme in the prescribed manner to the Competent Authority.

19G. Declaration of intention and issue of final notification of Scheme.— (1) The Competent Authority shall, publish the preliminary notification in the *Official Gazette*, declaring its intention to make the Scheme in respect of the proposal received from the Highway Authority as provided in sub-section (4) of section 19F, in the prescribed manner and within the prescribed period, calling for objections or suggestions, as well as the consent for voluntary participation in the Scheme, from the land owners or persons interested, whose lands are included in the Scheme.

(2) The land owners or persons interested shall submit their objections or suggestions, as well as consent, for the Scheme in the prescribed manner, in writing to the Competent Authority or appear before such authority, within prescribed period from the date of the publication of the preliminary notification in the *Official Gazette*.

(3) The Competent Authority shall, after all such objections or suggestions have been considered or heard, as the case may be, and after such further inquiry, if any, as it thinks necessary, forward to the Highway Authority, a copy of the record of its proceedings held by it together with the report setting forth its recommendations on the objections or suggestions.

(4) The Highway Authority shall consider the record and report specified in sub-section (3) and may publish the final notification in the *Official Gazette*, delineating the boundaries and area comprised in the Scheme, in the prescribed manner, with or without such modifications, if required, as it thinks fit.

(5) The decision of the Highway Authority to publish the final notification under sub-section (4) shall be final and conclusive.

(6) The consent given by the land owners or persons interested under sub-section (2) shall be irrevocable.

19H. Verification of title of land and extent of consent.— (1) The Competent Authority shall, verify the title of the land and extent of consent as provided in sub-section (2) of section 19G, covered under the Scheme, with reference to revenue records, registered documents other relevant records of ownership of land in the prescribed manner within prescribed period.

(2) The Competent Authority shall pass the appropriate order under his seal and signature, confirming the acceptance or otherwise of the land for the Scheme.

19I. Disputed ownership.— (1) Where there is a dispute over the claim of the ownership of any land included in the area under the Scheme, in respect of which a declaration of intention has been made, or any entry in the record of rights or mutation relevant to such disputed claim is inaccurate or inconclusive, in such cases, the Competent Authority may, hold an enquiry in the prescribed manner, at any time, before the final allotment of the developed non-agricultural plot or land.

(2) The Competent Authority shall, after giving an opportunity, of being heard to the land owner or person interested, pass an appropriate order, for the purposes of deciding who is the land owner or person interested for the purposes of the Scheme, under his seal or signature.

(3) The aggrieved person may, file an appeal before the competent revenue authority or regular suit in a Court of competent jurisdiction, as the case may be, under the applicable law.

¹ Chapter IIIA was inserted by Mah. 28 of 2016, s. 6.

19J. Acquisition of land of land owners not participating in Scheme.— The land owners or persons interested, who have not voluntarily participated in the Scheme, the land of such land owners or persons interested, shall be acquired as per the law applicable for acquisition of land.

19K. Publication of draft and final layout.— (1) The Highway Authority shall prepare the draft layout of land included in the boundaries of the New Town in the prescribed manner. The draft layout shall include all the land whether the land owners or persons interested has voluntarily participated or not in the Scheme.

(2) The Highway Authority shall, publish the draft layout of such land, in the prescribed manner, calling for objections or suggestions from the land owners or person interested, who has voluntarily participated in the Scheme.

(3) The land owners or persons interested shall submit their objections or suggestions for the draft layout in the prescribed manner, in writing to the Highway Authority or appear before Authority, within the prescribed period from the date of the publication of the draft layout.

(4) The Highway Authority shall hear all such objections or suggestions, consider the record and may publish the final layout, in the prescribed manner, with such modifications, if any, as it thinks fit.

(5) The decision of the Highway Authority to publish the final layout under sub-section (4) shall be final and conclusive.

19L. Vesting of land with Highway Authority.— (1) The land in final notified area under the Scheme as provided in sub-section (4) of section 19G and the final layout as provided in sub-section (4) of section 19K, shall vest absolutely with the Highway Authority, as non-agricultural land, free from all encumbrances, on Class-I occupancy basis, for the development and implementation of the Scheme:

Provided that, notwithstanding anything contained in any other law for the time being in force, no premium or *nazarana* or share of unearned income shall be levied by the Government for transferring of any land held on Class-II occupancy to the Highway Authority under the Scheme, and upon such transfer, such land shall vest in the Highway Authority, as non-agricultural land, free from all encumbrances, on Class-I occupancy basis.

(2) Any person wrongfully occupying any land vested with the Highway Authority shall be summarily evicted by the Collector in the manner provided in the Maharashtra Land Revenue Code, 1966 (Mah. XLI of 1966), on being required to do so by the Highway Authority.

19M. Allotment of developed non-agricultural plot or land.— (1) The Highway Authority shall, allot the developed non-agricultural plot or land to the land owners or persons interested, who have voluntarily participated in the Scheme, as per the Scheme declared by the Government.

(2) The procedure of allotment of developed non-agricultural plot or land shall be in the prescribed manner.

19N. Land Pooling Ownership Certificate.— (1) The Highway Authority shall, within prescribed period, issue the Land Pooling Ownership Certificate (hereinafter referred to as “the Certificate”) to the owners or persons interested, after allotment of the developed non-agricultural plot or land as provided in section 19M:

Provided that, notwithstanding anything contained in any other law for the time being in force, the ownership of the developed non-agricultural plot or land, shall be free from all encumbrances, on Class-I occupancy basis.

(2) The Certificate shall contain details of the original land of land owners or persons interested, details of the developed non-agricultural plot or land, including its original Ownership details, along with a map of developed non-agricultural plot or land.

(3) The Highway Authority shall register the Certificate under the provisions of The Registration Act, 1908 (16 of 1908). Such Certificate shall be the conclusive proof of the title of the property in respect of the allotted developed non-agricultural plot or land and shall be eligible for transfer of rights of the property in accordance with the provisions of the Transfer of Property Act, 1882 (4 of 1882).

19O. Exemption from payment of registration fee, stamp duty, etc.— (1) No registration fee and stamp duty shall be charged from the Highway Authority for registration of the Certificate as provided in sub-section (3) of Section 19N.

(2) No non-agricultural assessment shall, be levied on the allotted developed non-agricultural plot or land under sub-section (1) of section 19M by the Highway Authority from the first allottee.

19P. Power to take possession of land.— (1) The Competent Authority shall, take the possession of the land in the Scheme from the land owners or persons interested, to whom the Certificate is issued as provided in sub-section (1) of section 19N and hand over the possession of such land to the Highway Authority in the prescribed manner.

(2) The Competent Authority shall, take the possession of the land acquired as provided in section 19J, after ensuring that full payment of compensation as well as rehabilitation and resettlement entitlements are paid to the concerned land owners or persons interested as per the law applicable for acquisition of land. Thereafter, the Competent Authority shall hand over the possession of such land to the Highway Authority in the prescribed manner.

19Q. Incorporation of land in development plan.— The Planning Authority shall incorporate the land of the final notified area of the Scheme as provided in sub-section (4) of section 19G and the final layouts as provided in sub-section (4) of section 19K, in the development plan of the New Town under the Maharashtra Regional and Town Planning Act, 1966 (Mah. XXXVII of 1966).

19R. Responsibilities of owner of developed non-agricultural plot or land.— The owner of the developed non-agricultural plot or land shall be responsible for the following, namely:—

(a) for all the required infrastructure within the developed non-agricultural plot or land and for obtaining development permissions as per the law applicable;

(b) to obtain all other permissions and requisite 'No Objection Certificates' required for the development of the allotted plot or land; and

(c) to pay necessary fees and charges as per the applicable law and rules for the sanction of development permission before commencing any construction activity on the developed non-agricultural plot or land.

19S. Implementation of Scheme.— (1) The Highway Authority shall implement the Scheme in the prescribed manner.

(2) The Highway Authority shall carry out the physical demarcation of roads and plots or land of the final layout.

(3) The Highway Authority shall hand over the possession of the developed non-agricultural plot or land to the Certificate holder as per the Scheme in the prescribed manner, after formation of the roads as per the final layout.

(4) The remaining infrastructure like street light, solid waste management, sewerage treatment facility, water supply, parks and play grounds and other amenities shall be developed by the Highway Authority in a phased manner.

19T. Completion of Scheme.— (1) The Highway Authority shall publish notice of the completion of the Scheme in the prescribed manner within prescribed period.

(2) The Highway Authority shall also publish the details of the allotment of developed non-agricultural plot or land to the land owners or persons interested, in the prescribed manner.

19U. Infrastructure maintenance.— (1) The owners of the developed non-agricultural plot or land shall pay for the usage, consumption and maintenance charges levied by the Highway Authority or local authorities or agencies responsible for the common infrastructure and respective services including roads, street lights, solid waste management, sewerage treatment facility, water supply, parks and play grounds and other amenities.

(2) The Highway Authority may maintain the common infrastructure facilities either on its own or authorize the local authority or agency with the prior approval of the Government.

(3) The Highway Authority may collect such necessary user charges for infrastructure maintenance, as may be prescribed in the prescribed manner.

19V. Delegation of powers.— (1) The Highway Authority may, as it thinks fit, authorise and delegate its powers to any officer, for the purposes of this Act.

(2) The Highway Authority and the authorised officers shall exercise and perform such duties, as may be prescribed.

(3) The Competent Authority may, as it thinks fit, authorise and delegate its powers to the officer not below the rank of Deputy Collector, for the purposes of this Act.

(4) The Competent Authority and authorized officers shall exercise such powers and perform such duties, as may be prescribed.

19W. Restrictions on development of land in Scheme area.— (1) After declaration of intention of the Scheme as provided in sub-section (1) of section 19G, no land owners or persons interested shall, without the prior permission in writing of the Highway Authority, construct, erect, build, excavate, etc., in the Scheme area.

(2) The provisions of sections 9 to 13 shall, *mutatis mutandis*, apply for the Scheme area.]

CHAPTER IV

PREVENTION OF UNAUTHORISED OCCUPATION OF, AND ENCROACHMENT ON, A HIGHWAY AND REMOVAL OF ENCROACHMENT

20. Lands forming part of highway deemed to be Government property.— All lands forming part of a highway which do not already vest in the State Government shall, for the purpose of this Chapter, be deemed to be the property of the State Government.

21. Prevention of unauthorized occupation of highway.— (1) No person shall occupy or encroach on any highway within the highway boundaries without obtaining the previous permission in writing of the Highway Authority or an officer authorized in this behalf by the Highway Authority.

(2) The Highway Authority or an officer authorized by the Highway Authority in this behalf may, with due regard to the safety and convenience of traffic and subject to such conditions as may be imposed and such rules as may be prescribed by the State Government, and on payment of such rent or other charges as may be prescribed under such rules, permit any person,—

(i) to place a temporary encroachment on any highway in front of any building owned by him or make a temporary structure overhanging the highway, or

(ii) to put up a temporary awning or tent, pandal or other similar erection or a temporary stall or scaffolding on any highway, or

(iii) to deposit or cause to be deposited building materials, goods for sale or other articles on any highway, or

(iv) to make a temporary excavation for carrying out any repairs or improvements to adjoining building :

Provided that no such permission shall be deemed to be valid beyond a period of one year unless expressly renewed by the Highway Authority or the authorized officer.

(3) The permission so granted shall clearly specify the date up to which the person is authorized to occupy the highway, the purposes for which occupation is authorized and the exact portion of the highway permitted to be occupied and shall also be accompanied by a plan or sketch of that portion of the highway, if necessary.

(4) The person in whose favour such a permission has been given shall produce the permit for inspection whenever called upon to do so by the Highway Authority or any officer by a general or special order empowered in that behalf and shall at the end of the period specified in the permit release the land occupied by him after restoring it to the same state as before the occupation by him.

(5) The Highway Authority or the officer issuing the permission shall maintain a complete record of all such permissions issued and shall also cause a check-up to be made in every case at the expiration

of the period up to which occupation has been authorized to ensure that the land has actually been vacated.

22. Power to cancel permit.— (1) The Highway Authority may cancel any permission granted under section 21—

- (a) if any rent or charge is not duly paid,
- (b) if the purpose for which the permission was given has ceased to exist,
- (c) in the event of any breach by the holder of such permission or of any terms or conditions of such permission,
- (d) if the land on which such encroachment has been made is required for any public purpose or such encroachment is causing impediment or danger to traffic.

(2) Where the permission has been cancelled under clause (b) or (d) of sub-section (1) any rent or charge paid in advance shall be refunded to the holder of such permission less the amount, if any, due to the State Government.

23. Prevention of encroachment.— (1) When as a result of check of highway boundaries made or otherwise it transpires that an encroachment has taken place on a highway the Highway Authority or the officer authorized under sub-section (1) of section 21 shall serve a notice on the person responsible for the encroachment or his representative requiring him to remove such encroachment and restore the land to its original conditions before the encroachment within the period specified in the notice.

(2) The notice shall specify the land encroached upon and the time limit within which such encroachment shall be removed and shall also state that failure to comply within the specified period shall render the person liable to prosecution and also to summary eviction.

(3) If the encroachment is not removed within the time-limit specified in the notice and no valid cause is shown for non-compliance, the Highway Authority or the authorized officer referred to in sub-section (1) may prosecute such person before the appropriate Magistrate for his having made or caused the encroachment and for his failure to remove it within the specified time.

(4) Where the encroachment is made for the purpose of exposing articles for sale, opening temporary booths for vending or other like purpose of a trivial nature the Highway Authority or the authorized officer referred to in sub-section (1) may with the help of the police, if necessary, have such encroachment summarily removed without issuing a notice as required by sub-section (1), or in lieu of removal of the encroachment, may give the person responsible for the encroachment option of executing a lease in favour of the Highway Authority on payment of rent for the area encroached upon.

(5) When the encroachment is of a temporary nature and can easily be removed but is not such as can be described as trivial within the meaning of sub-section (4), the Highway Authority or the authorized officer referred to in sub-section (1) may in addition to or in lieu of prosecuting the person responsible for the encroachment under sub-section (3) have the encroachment summarily removed with the assistance of the police, if necessary.

(6) Where the encroachment is of such a nature that its immediate removal is, considered essential in the interests of safety of traffic on the highway or the safety of any structure forming part of the highway, the Highway Authority or the authorized officer referred to in sub-section (1) may, in addition to prosecution of the person under sub-section (3), either—

- (i) have such protective work, as may be feasible at a reasonable cost, carried out so as to minimise the danger to traffic on the highway, or
- (ii) have the encroachment removed with the help of the police, if necessary.

24. Appeal against notice served under sub-section (1) of section 23.— Where the person on whom notice to remove an encroachment has been served under sub-section (1) of section 23 lays claim that the land in respect of which encroachment has been alleged is his property or that he has acquired a right over it by virtue of adverse possession or otherwise he shall within the time-limit prescribed in the notice for the removal of the encroachment, file an appeal before the Collector under intimation to the Highway Authority or the officer authorized under sub-section (1) of section 21, as the case may be. The Collector shall after due enquiry record his decision in writing and communicate the same to the appellant

and the Highway Authority or such officer. The Highway Authority to such officer shall till then desist from taking further action in the matter.

25. Recovery of cost of removal of encroachment.— (1) Whenever the Highway Authority or the officer authorized under sub-section (1) of section 21 has under the provisions of section 23 removed any encroachment or carried out any protective work in respect of any encroachment, the expenditure involved shall be recovered from the person responsible for the encroachment in the manner hereinafter provided.

(2) A bill, representing the expenditure incurred shall be served by the Highway Authority or the authorized officer referred to in sub-section (1) on the person responsible for the encroachment or his representative with a direction to pay up the amount within a specified period to the authority mentioned in the bill.

(3) The bill shall be accompanied by a certificate from the Highway Authority or the authorized officer referred to in sub-section (1) to the effect that the amount of expenditure indicated in the bill represents the charges incurred and such a certificate shall be conclusive proof that the charges had actually been incurred.

(4) The materials, if any, recovered as a result of the removal of any encroachment shall be handed over to the person responsible for the encroachment on payment of the amount of the bill by him but in the event of his failure to pay up the amount within the specified period, the materials may be auctioned and after deducting the amount of the bill from the proceeds, the balance, if any, shall be made over to such person.

(5) If the proceeds of the auction sale do not cover the total amount billed for, the excess over the amount realised by the sale of materials, or if there are no materials to dispose of and the billed amount has not been paid by the person responsible for the encroachment within the specified period, the entire amount of the bill shall be recovered from such person as an arrear of land revenue.

CHAPTER V

COMPENSATION

26. Doing minimum damage in certain cases and compensation.— In the exercise of the powers under the following provisions by the Highway Authority or any officer or servant appointed under section 6 or any other person authorised by or under this Act by the State Government, as little damage as can be shall be done and compensation in the manner prescribed by or under this Act shall be paid to any person who sustains damage in consequence of the exercise of such powers, namely :—

- (a) the imposition of restrictions under section 9;
- (b) the setting back of any building or part thereof under section 12;
- (c) the regulation or diversion of any right of access to a highway under section 13;
- (d) the entry, survey, measurement and doing of any of the acts on any land under section 14;
- ¹ * * * * *
- (f) the closure of any highway or part thereof under section 52.

27. Determination of amount of compensation by agreement.— The amount of compensation payable under section 26, the persons to whom it is to be paid and the apportionment of such amount among the persons interested therein shall be determined by agreement between the Highway Authority or any officer authorised by the State Government and the person or persons claiming interest therein.

28. Determination of amount of compensation in default of agreement.— (1) In default of any agreement under section 27, the Highway Authority or the officer authorised by the State Government shall, subject to the provisions of this Act, after holding an enquiry, make an award determining—

- ² * * * * *

¹ Clause (e) was deleted by Mah. 37 of 1999, s. 3.

² Clause (a) was deleted by Mah. 37 of 1999, s. 4(a).

(b) the amount of compensation to be paid under section 26,

(c) the apportionment, if any, of such compensation among all persons known or believed to be entitled thereto:

¹[Provided that, no award allowing compensation exceeding such amount as the State Government may, by general order, specify shall be made without the previous approval of the State Government or such officer as the State Government may appoint in this behalf.]

2 * * * * *

29. No compensation if similar restrictions in force under any other law or if compensation already received.— No compensation shall be awarded,—

(i) if and in so far as the land is subject to substantially similar restriction in force under some other law which was in force on the date on which the restrictions were imposed by this Act;

(ii) if compensation in respect of the same restrictions imposed under this Act or substantially similar restrictions in force under any other law has already been paid in respect of the land to the claimant or to any predecessor in interest of the claimant.

30. Compensation for refusal of permission to build not to exceed difference between its value when it was refused and when it would have been granted.— When permission to erect any building has been refused under section 9 or 10, the amount of compensation shall not exceed the difference between the value of the land as determined by section ³[19B of this Act] ⁴* * * and the value which it would have had if the permission had been granted. In determining such value any restrictions to which the land is subject under any other law for the time being in force in regard to the right of person claiming compensation to erect a building on the land or otherwise to use, hold or dispose of the same shall be taken into consideration.

31. Compensation for diversion of access not to exceed cost of alternative access.— Where the right of access to a highway has been destroyed as a result of the diversion or closure thereof and an alternative access has been given, the amount of compensation shall in no case exceed the cost of laying a new means of access from the property of the claimant to such alternative route.

32. Compensation for cutting of standing crops, trees, etc.— (1) At the time of an entry, survey or measurement or doing of any of the things under section 14, the officer making the entry, survey or measurement or doing any other thing shall pay or tender to any person entitled compensation for all necessary damage done as a result of such entry, survey, measurement or execution of the work, including the cutting of standing crops, trees, or removal of temporary structures, if any, on the land. If the sufficiency of the amount so paid or tendered is disputed, the officer concerned shall at once refer the dispute to the Highway Authority and the said Authority shall with the least practicable delay decide the dispute and pay to the person entitled the amount determined as compensation. The decision of the Highway Authority shall be final.

(2) If at the time of taking possession of the land under section 19 there are any standing crops, trees or temporary structures on the land, the Highway Authority shall pay or tender to the person entitled the amount of compensation for such standing crops, trees or temporary structures. If the sufficiency of such amount is disputed, the value of such crops, trees and temporary structures shall be taken into consideration in determining the amount of compensation for the land under ⁵[section 19B].

33. No compensation for unauthorised erections.— If any person has unauthorisedly erected, re-erected, added or altered any building on any land which is acquired for the purpose of a highway, then any increase in the value of the land from such erection, re-erection, addition or alteration shall not be taken into account in estimating the value of the land.

¹ This proviso was added by Mah. 42 of 1965, s. 7.

² Sub-section (2) was deleted by Mah. 37 of 1999, s. 4(b).

³ The figures, letter and words were substituted for the figures and words “23 or 24 of the Land Acquisition Act, 1894” by Mah. 37 of 1999, s. 5.

⁴ The words “as amended by the Schedule to this Act” were deleted by Mah. 24 of 1967, s. 3.

⁵ The word, figures and letter was substituted for the words and figures “section 28” by Mah. 37 of 1999, s. 6.

34. No compensation for removal of encroachment.— No compensation shall be payable for the removal of any encroachment.

35. Reference against award of Highway Authority or authorised officer under section 28.—¹[(1) Any person aggrieved by the award of the Highway Authority, or the Officer authorised under section 28, shall by a written application to the Highway Authority, or such officer, require that the matter be referred, to arbitrator appointed under sub-section (8) of section 19B.]

(2) Any such application shall be made within six weeks from the date of the award, and shall be in such form as may be prescribed.

(3) ²[* * * * *]

(4) The Highway Authority or the Officer authorised shall make the reference in such manner as may be prescribed.

36. Procedure and powers of the authorities empowered to decide references under sections 35 and 44.— (1) Reference under sections 35 and 44 shall be deemed to be proceedings within the meaning of section 141 of the Code of Civil Procedure, 1908 (V of 1908), and in the trial thereof the authorities empowered to decide such references may exercise all the powers of a civil court under that Code.

(2) The scope of the enquiry in a reference under section 35 or 44 shall be restricted to a consideration of the matters referred to the authorities mentioned in sub-section (1) in accordance with the provisions of this Act.

37. Commissioner of Police or District Superintendent of Police to enforce surrender or remove any encroachment.— If the Highway Authority or any officer or servant is opposed or impeded³ * * * * in executing any work or in removing any encroachment under this Act, the Highway Authority or officer or servant concerned shall apply in Greater Bombay to the Commissioner of Police, and elsewhere, to the District Superintendent of Police or such Police Officer as the State Government may empower in this behalf, and the Commissioner, the District Superintendent or the officer so empowered shall enforce the surrender, removal or execution, as the case may be.

38. Decisions of authorities under sections 35 and 44 to be enforced as decrees of civil court.— The decisions of the authorities empowered to decide references under sections 35 and 44 shall be enforceable as a decree of a civil court.

39. Payment of compensation awarded.— (1) On the determination of compensation by agreement under section 27 or

(2) on the making of an award under section 28, or

(3) if a reference is made under section 35 against such award, after the decision of the Authority under that section,

the Highway Authority shall make the payment of the compensation awarded to the person entitled thereto in accordance with the agreement, its award or the decision of the Authority empowered to decide references under section 35, as the case may be. ⁴[The provisions of section 19C shall, *mutatis mutandis*, apply to such payment].

40. Payment by adjustment.— All payments due to be made to any person by way of compensation by the Highway Authority under this Act shall, as far as possible, be made by adjustment in such person's account regarding betterment charges, if any, due from such person under Chapter VI.

¹ This sub-section was substituted by Mah. 37 of 1999, s. 7(a).

² Sub-section (3) was deleted by Mah. 37 of 1999, s. 7(b).

³ The words "in taking possession of any land or" were deleted by Mah. 37 of 1999, s. 8.

⁴ These words were substituted for the portion beginning with the words "The provision of sections" and ending with the words "apply to such payment." by Mah. 37 of 1999, s. 9.

CHAPTER VI

LEVY OF BETTERMENT CHARGES

41. Notice to owners and persons interested.— Where any work which the Highway Authority is empowered to undertake by or under the provisions of this Act is undertaken, the officer authorised by the State Government in this behalf shall give notice to the persons known or believed to be the owners of or interested in the lands benefited by such work requiring them to appear before him either personally or by an agent at a time and place therein mentioned (such time not being earlier than 30 days from the date of notice) to start their objections, if any, to the imposition and recovery of betterment charges on such lands :

Provided that no notice shall be given unless the Collector with the previous sanction of the State Government has declared that the value of such lands is likely to increase or has increased by reason of the construction of such work.

42. Inquiry and order.— On the date fixed under section 41 or on such other date to which the inquiry may be adjourned, the officer authorised under section 41 shall, after holding a formal inquiry and after hearing the objections, if any, stated by the persons as required by notice under section 41, make an order. The order shall specify,—

- (a) the lands benefited by the construction of the work,
- (b) the increase in the value of such lands by the proposed construction,
- (c) the amount of the betterment charges leviable on each of the said lands,
- (d) the date from which such betterment charges shall be leviable :

Provided that no betterment charges shall be leviable in respect of any land—

- (a) which is unsuitable for development as a building site, or
- (b) which is situate beyond a distance of one furlong from the middle of the highway on either side.

43. Increase in value and betterment charges.— The increase in value on account of the construction of such work shall be the amount by which the value of the land on the date of the completion of the proposed work is likely to exceed or has exceeded the value of the land on the date of the commencement of the said work and the betterment charges shall be one-half of such increase in value.

Explanation.— For the purposes of this section, the State Government shall, by notification in the *Official Gazette*, specify—

- (a) the date of commencement of the construction of any work,
- (b) the date of completion of such work.

44. Reference against order of authorised officer under section 42.— (1) Any person aggrieved by the order fixing the betterment charges may, by a written application to the officer authorised under section 41, require that the matter be referred, if the land in relation to which the order is made is situate,—

- (i) in Greater Bombay, to the Principal Judge of the City Civil Court or such other Judge of the said Court as may be nominated by the State Government in consultation with the Principal Judge ; and
- (ii) elsewhere, to the Civil Judge (Senior Division) of the district within the limits of whose jurisdiction the land is situate.

(2) Any such application shall be made within six weeks from the date on which the order of the officer referred to in sub-section (1) was communicated to such person and shall be in such form as may be prescribed.

(3) The provisions of sections 5, 12 and 14 of the Indian Limitation Act, 1908 (IX of 1908), shall apply to the computation of the time fixed for reference under sub-section (2).

(4) The Officer authorised under section 41 shall make the reference, in such manner as may be prescribed.

45. Finality of order fixing betterment charges and of decision on reference.— The order fixing the betterment charges made under section 42, subject to a reference to the Authority under section 44 and the decision of the Authority on reference under section 44, shall be final.

46. Betterment charges to be first charge on land next to land revenue.— From the date specified in the order fixing the betterment charges as the date from which such charges shall be leviable, or from such date as may be otherwise specified by the Authority under section 44 as the date from which such charge shall be leviable, the betterment charges recoverable in respect of any land shall, subject to the prior payment of the land revenue, if any, due to the State Government thereon, be a first charge on the land in respect of which such betterment charges are leviable.

47. Payment of betterment charges.— The betterment charges shall be payable on the date fixed under the rules made by the State Government under section 71 :

Provided that the owner of the land in which such charges are imposed may execute an agreement in favour of the State Government agreeing to pay the amount of such charges by annual instalments together with interest at such rate and within such period as may be prescribed.

48. Relinquishment of or exchange of land in lieu of payment of betterment charges.— Notwithstanding anything contained in section 47, the State Government may allow the owner of the land on which the betterment charges may be payable to relinquish the whole or any part of the land or to deliver it in exchange in lieu of payment of the charges, in favour of the State Government on such conditions as may be prescribed :

Provided that no such relinquishment or exchange shall be permitted unless the land is free from encumbrances.

CHAPTER VII

SUPPLEMENTAL PROVISIONS TO SECURE SAFETY OF TRAFFIC AND PREVENTION OF DAMAGE TO HIGHWAYS

49. ¹[Prevention of danger arising from obstruction of view, etc. of persons using any highway.]— (1) Whenever the Highway Authority is of opinion that it is necessary for the prevention of danger arising from obstruction of the view of persons using any highway ²[or from distraction of attention of such persons], especially at any bend or corner of the highway, it may, save as otherwise provided in section 11, serve a notice upon the owner or occupier of land alongside or at the bend or corner of such highway to alter within such time and in such manner as may be specified in the notice, the height or character of any existing wall (not being a wall forming part of a permanent structure), fence, hedge, tree, advertisement post, bill board or any other object thereon, so as to cause it to conform with any requirements specified in the notice.

(2) If any person upon whom a notice has been served under sub-section (1) objects to comply with any requirement of such notice, he may, within one month of its receipt, send to the Highway Authority his objection in writing stating the grounds thereof.

(3) The Highway Authority shall, within one month of the receipt of the objection consider the grounds advanced and shall, by order in writing, either withdraw the notice or amend or confirm it.

(4) If a person is aggrieved by an order issued by the Highway Authority under sub-section (3), he may prefer an appeal within 15 days from the date when such order was communicated to him, to the Collector whose decision in the matter shall be final.

(5) If any person fails to comply with the notice served on him under sub-section (1) as amended or confirmed, as the case may be, under sub-section (3), the Highway Authority may take action to alter the object causing obstruction of view ³[or distraction of attention] at its own expense, and such

¹ This marginal note was substituted for the original by Mah. 42 of 1965, s. 8(c).

² These words were inserted by Mah. 42 of 1965, s. 8(a).

³ These words were inserted by Mah. 42 of 1965, s. 8(b).

expenditure shall be recovered from such person in accordance with the provisions of section 25, without prejudice to any other action which may be taken against him.

50. Highway Authority to regulate traffic when highway declared unsafe.— If at any time it appears to the Highway Authority that any highway in its charge or any portion thereof is or has been rendered unsafe for vehicular or pedestrian traffic by reason of damage or otherwise, it may, subject to such rules as may be prescribed in this behalf, either close the highway or the portion of it to all traffic or to any class of traffic, or regulate the number and speed or weight of vehicles using the highway.

51. Prohibition of use of heavy vehicles on certain highways.— Where the Highway Authority is satisfied that any highway or a portion thereof, or any bridge, culvert or causeway built on or across any highway, is not designed to carry vehicles of which the laden weight exceeds such limit as may be fixed in this behalf, it may, subject to such rules as may be prescribed in that behalf, prohibit or restrict the plying of such vehicles on or over such highway or such part of the highway or such bridge, culvert or causeway.

52. Procedure to be followed when Highway Authority desires permanently to close any highway.— (1) Where in exercise of the powers conferred on it by section 50 the Highway Authority desires permanently to close down any highway or part thereof, it shall give notice of its intention so to do in the *Official Gazette*. The notification shall also be published in at least two newspapers, one of which shall be in the regional language of the place in which the highway is situated.

(2) The notice shall indicate the alternative route, if any, which is proposed to be provided or which may already be in existence and shall also invite objections, if any, to the proposal to be submitted within such time as may be specified.

(3) The Highway Authority shall finalise its proposal to close down any highway or part of it after considering the objections, if any, received within the specified time and shall submit the final proposal to the State Government for approval together with such objections as may have been received against the proposal.

(4) The State Government may either approve the proposal, with or without modifications or reject it.

(5) When the State Government has approved the proposal it shall publish its orders in the *Official Gazette*.

(6) When the orders of the State Government have been published in the *Official Gazette* the Highway Authority shall arrange for further publicity to be given to the order in at least two newspapers one of which shall be in the regional language of the place in which such highway is situate and the highway or part thereof shall then be closed.

(7) Whenever any highway or any part thereof has been so closed, reasonable compensation shall be paid to every person who was entitled, otherwise than as a mere member of the public, to use such highway or part thereof as a means of access, to or from his property and has suffered damage for such closure.

53. Consent of Highway Authority required to do certain acts on highway.— (1) Notwithstanding anything contained in any other enactment for the time being in force but subject to the provisions of section 72 no person other than the Highway Authority or any person authorised by it shall construct or carry any cable, wire, pipe, drain, sewer or channel of any kind through, across, under or over any highway, except with the permission in writing of the Highway Authority.

(2) In giving its consent, the Highway Authority may impose such conditions as it may deem to be necessary, and may also impose a rent or other charge for any land forming part of the highway occupied by or applied to the proposed work.

(3) If any person constructs or carries out any work in contravention of sub-section (1), the Highway Authority may arrange for the removal of such work and restoration of the highway to its former condition in accordance with the provisions of section 23 as if the work constituted an encroachment on the highway, and such expenses as the Highway Authority may incur for this purpose, shall, without

prejudice to any other action that may be taken against such person, be recovered from him in accordance with the procedure provided in section 25 in so far as that procedure is applicable.

54. Prevention and rectification of damaged highway.— (1) No person shall wilfully cause, or allow any vehicle or animal in his charge to cause any damage to any highway.

(2) Where in contravention of sub-section (1) any damage has been caused to any highway, the Highway Authority shall have the damage repaired and the expenses involved shall, without prejudice to any other action that may be taken against the person responsible for contravention of sub-section (1), be recovered from him in accordance with the procedure provided in section 25 in so far as that procedure is applicable.

CHAPTER VIII

PENALTIES

55. Disobedience of orders, instructions and refusal to give information, etc.— Whoever wilfully disobeys any direction lawfully given by any person or authority empowered under this Act to give such direction, or obstructs any person or authority in the discharge of any functions that such person or authority is required or empowered under this Act to discharge, or, being required by or under this Act to supply any information, withholds such information or gives information which he knows to be false or which he does not believe to be true shall, on conviction, be punished with fine which may extend to ¹[one thousand rupees].

56. Contravention of restrictions relating to access or erecting any building, etc.— Whoever erects, alters or extends any building, or make any excavation or constructs any means of access to or from a highway or does any other work in contravention of the provisions of section 9, shall, on conviction, be punished—

(a) with fine which may extend to ²[two thousand rupees], and

(b) with further fine which may extend to ³[five thousand rupees] for each day after such conviction, during which the offending structure or work is not removed, demolished or cleared and the site not restored to its original condition.

57. Unauthorized occupation of highway.— Whoever—

(a) occupies or makes any encroachment on any highway in contravention of the provisions of sub-section (1) of section 21, or

(b) fails to comply with the notice served on him under sub-section (1) of section 23 for no valid reason,

shall, on conviction, be punished—

(a) for a first offence with fine which may extend to ⁴[one thousand rupees],

(b) for a subsequent offence in relation to the same encroachment with fine which may extend to ⁵[two thousand rupees] plus a further fine not exceeding ⁶[hundred rupees per day] on which such occupation of the highway or encroachment continues.

58. Causing damage to highways.— Whoever in contravention of sub-section (1) of section 54 wilfully causes or allows any vehicle or animal in his charge to cause any damage to any highway, shall, on conviction, be punished with fine which may extend to one thousand rupees.

¹ These words were substituted for the words “two hundred rupees” by Mah. 37 of 1999, s. 10.

² These words were substituted for the words “five hundred rupees” by Mah. 37 of 1999, s. 11(a).

³ These words were substituted for the words “one hundred rupees” by Mah. 37 of 1999, s. 11(b).

⁴ These words were substituted for the words “two hundred and fifty rupees” by Mah. 37 of 1999, s. 12(a).

⁵ These words were substituted for the words “five hundred rupees” by Mah. 37 of 1999, s. 12(b).

⁶ These words were substituted for the words “fifty rupees per day” by Mah. 37 of 1999, s. 12(c).

59. General provision for punishment of offences.— Whoever contravenes any provision of this Act or of any rule or order made thereunder shall if no other penalty is provided for the offence, on conviction, be punished—

(a) for a first offence with fine which may extend to ¹[five thousand rupees],

(b) for a subsequent offence with fine which may extend to ²[one thousand rupees].

60. Power to compound offences.— Any offence committed under this Act may be compounded by the Highway Authority and if any proceedings have been instituted against any person in any criminal court, then on the terms of the compromise being carried out, the composition shall be held to amount to an acquittal and in no case shall any further proceedings be taken against such person or any property of such person with reference to same facts.

CHAPTER IX

MISCELLANEOUS

61. Powers and duties of police.— Every police officer shall forthwith furnish information to the nearest Highway Authority or the nearest officer subordinate to the Highway Authority of any offence coming to his knowledge which has been committed against this Act or any rule made under this Act, and shall be bound to assist the Highway Authority and its officers and servants in the exercise of their lawful authority.

62. Duties of village officials.— Every village headman, village accountant, village watchman or other village official by whatever name called, shall forthwith inform the nearest police station or the nearest Highway Authority or any officer duly authorised by the Highway Authority, whenever he becomes aware that any survey mark or any boundary mark of any highway or any mark showing the building or control line determined in respect of a highway has been destroyed, damaged, removed, displaced or otherwise tampered with, or that any damage to any highway or encroachment on any highway has been made.

63. Power to utilise highway for other than road purposes.— The Highway Authority may utilise temporarily for other than road purposes land forming part of a highway which is not immediately required for the passage of traffic, and dispose of the produce of such land.

³[**63A. Power of Highway Authority to dispose land.**— The Highway Authority may dispose the land vested in it in the prescribed manner.]

64. Summary eviction.— Any person wrongfully occupying any land,—

(a) which is a part of a highway,

(b) the occupation of which contravenes any of the provisions of this Act and the said provisions do not provide for the eviction of such person,

shall be summarily evicted by the Collector in the manner provided in the Bombay City Land Revenue Act, 1876 (Bom. II of 1876), or in the Bombay Land Revenue Code, 1879 (Bom. V of 1879) ⁴[or in any law relating to land revenue in force in any part of the State], as the case may be, on being required to do so by the Highway Authority or any officer authorised in this behalf by the State Government.

65. Inquiries to be held summarily.— (1) The Highway Authority or the officer authorised by the State Government in this behalf shall, if he desires to make any inquiry for the purpose of this Act, make the inquiry in the manner provided for holding a summary inquiry under the Bombay City Land Revenue Act, 1876 (Bom. II of 1876), or the Bombay Land Revenue Code, 1879 (Bom. V of 1879), ⁵[or under any law relating to land revenue in force in any part of the State] and all the provisions contained

¹ These words were substituted for the words “fifty rupees” by Mah. 37 of 1999, s. 13(a).

² These words were substituted for the words “two hundred rupees” by Mah. 37 of 1999, s. 12(b).

³ Section 63A was inserted by Mah. 28 of 2016, s. 7.

⁴ These words were inserted by Mah. 42 of 1965, s. 9.

⁵ These words were inserted by Mah. 42 of 1965, s. 10(a)(i).

in the said Act or Code ¹[or law] relating to the holding of a summary inquiry, shall, so far as may be, apply:

²[Provided that, wherein any such law, there is no provision for holding inquiry in a summary manner, such inquiry shall be held in such other manner as is provided in that law.]

(2) The Highway Authority and an officer authorised by the State Government or the Highway Authority under this Act shall have the same powers for summoning and enforcing the attendance of any person and examining him on oath and compelling the production of documents as are vested in the revenue officers under the Bombay City Land Revenue Act, 1876 (Bom. II of 1876), or the Bombay Land Revenue Code, 1879 (Bom. V of 1879) ³[or under any law relating to land revenue in force in any part of the State].

66. Registration of map made under section 8 not required.— (1) Nothing in the Indian Registration Act, 1908 (XVI of 1908), shall be deemed to require the registration of any map made under section 8.

(2) All such maps shall, for the purposes of sections 49 and 50 of the Indian Registration Act, 1908 (XVI of 1908), be deemed to have been and to be registered in accordance with the provisions of that Act:

Provided that the maps shall be accessible to the public in the manner prescribed.

67. Certain persons to be public servants.— The Highway Authority, the officers and other persons authorised or appointed under this Act shall be deemed to be public servants within the meaning of section 21 of the Indian Penal Code (XLV of 1860).

68. Bar of jurisdiction.— No Civil Court shall have jurisdiction to settle, decide or deal with any question which is by or under this Act required to be settled, decided or dealt with by the Highway Authority, the Collector, an officer or person authorised under this Act, any Authority under section 35 or section 44 or the State Government.

69. Protection of persons acting in good faith and limitation of suit or prosecution.— (1) No suit, prosecution or other legal proceedings shall be instituted against any public servant or officer or person duly authorised under this Act in respect of anything in good faith done or intended to be done under this Act, or the rules or orders made thereunder.

(2) No suit or prosecution shall be instituted against any public servant or officer or person duly authorised under this Act in respect of anything done or intended to be done under this Act, unless the suit or prosecution has been instituted within six months from the date of the act complained of.

70. Service of notices and bills.— (1) Every notice or bill issued or prepared under this Act, may be served or presented,—

(a) by delivering or tendering it or sending it by post to the person to whom it is addressed, or to his agent, or

(b) if such a person or his agent is not found then by leaving it at his usual or last known place of abode or by delivering or tendering it to some adult male member of his family or by causing it to be fixed on some conspicuous part of the building or land, if any, to which it relates.

(2) Where a notice under this Act is required to be served upon an owner or occupier of a building or land, it shall not be necessary to name the owner or occupier, and the service thereof may be effected either—

(a) by delivering or tendering the notice or sending it by post to the owner or occupier or if there be more owners or occupiers than one, to any one of them, or

¹ These words were inserted by Mah. 42 of 1965, s. 10(a)(i).

² This proviso was added by Mah. 42 of 1965, s. 10(a)(ii).

³ These words were added by Mah. 42 of 1965, s. 10(b).

(b) if no such owner or occupier is found, then by giving or tendering the notice to an adult male member or servant of his family or by causing the notice to be fixed on some conspicuous part of the building or land to which the same relates.

(3) Whenever the person to whom a notice or bill is to be served is a minor, service upon his guardian or upon an adult male member or servant of his family shall be deemed to be service upon the minor.

171. Power to make rules.— (1) The State Government may, by notification in the *Official Gazette*, and subject to the condition of previous publication, make rules to carry out all or any of the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, the State Government may make rules for all or any of the following matters :—

(a) the manner in which the notification may be published in the Village and at the headquarters of the ²[taluka, tahsil or mahal] under sub-section (2) of section 7 ;

(b) the other places at which copies of map may be open to inspection under section 8 ;

(c) the form of application and its contents under sub-section (2) of section 9;

³[(d) other acts and things which may be done by the Land Acquisition Officer under section 16;

(d-1) the manner in which the amount shall be deposited under section 19C;]

⁴[(d-2) the manner of submission of the proposal of Scheme to the Competent Authority under sub-section (4) of section 19F;

(d-3) the manner and the period for calling objections or suggestions, as well as the consent, for voluntary participation in the Scheme under sub-section (1) of section 19G;

(d-4) the manner to submit objections or suggestions, as well as the consent, for voluntary participation in the Scheme to the Competent Authority and the period to appear before the Competent Authority under sub-section (2) of section 19G;

(d-5) the manner of publication of final notification, delineating the boundaries and area comprised in the Scheme under sub-section (4) of section 19G;

(d-6) the manner and the period of verification of title of land by the Competent Authority and the extent of consent under sub-section (1) of section 19H;

(d-7) the manner to hold enquiry by the Competent Authority under sub-section (1) of section 19I;

(d-8) the manner to prepare the draft layout by the Highway Authority under sub-section (1) of section 19K ;

(d-9) the manner to publish the draft layout by the Highway Authority under sub-section (2) of section 19K;

(d-10) the manner and period to submit objections or suggestions for the draft layout under sub-section (3) of section 19K;

(d-11) the manner to publish the final layout by the Higher Authority under sub-section (4) of section 19K;

(d-12) the manner to allot the developed non-agricultural plot or land under sub-section (2) of section 19M;

¹ The rules made under the Bombay Highways Act, 1955, as in force in the Bombay area of the State of Maharashtra are hereby extended to the rest of that State (*vide* section 2 of Mah. 42 of 1965).

² These words were substituted for the words “taluka or mahal” by Mah. 42 of 1965, s. 11(a).

³ These clauses were substituted for clause (d) by Mah. 37 of 1999, s. 14.

⁴ Clauses (d-2) to (d-22) were inserted by Mah. 28 of 2013, s. 8.

- (d-13) the period to issue Land Pooling Ownership Certificate under sub-section (1) of section 19N;
- (d-14) the manner to hand over the possession of the land to the Higher Authority under section 19P;
- (d-15) the manner to implement the Scheme by the Highway Authority under sub-section (1) of section 19S;
- (d-16) the manner to hand over the possession of developed non-agricultural plot or land to the Certificate holder under sub-section (3) of section 19S;
- (d-17) the manner and the period to publish notice of the completion of the Scheme by the Highway Authority under sub-section (1) of section 19T;
- (d-18) the manner to publish the details of the allotment of the developed non-agricultural plot or land by the Highway Authority under sub-section (2) of section 19T;
- (d-19) the necessary user charges to be collected by the Highway Authority and the manner to collect such charges under sub-section (3) of section 19U;
- (d-20) the powers and duties of the Highway Authority and the authorised officer under sub-section (2) of section 19V;
- (d-21) the powers and duties of the Competent Authority and the authorised officers under sub-section (4) of section 19V;
- (d-22) the manner of disposal of land by the Highway Authority under section 63A;]
- (e) the conditions on which and the amount of rent or charge on payment of which encroachments may be made on a highway ;
- (f) the manner in which a reference shall be made under section 35 or 44 ;
- (g) fixation of the date on which the betterment charges shall be payable under section 47 and instalments together with the rate of interest and the period within which such instalments shall be paid under the proviso to the said section ;
- (h) the conditions on which any land may be relinquished or delivered in exchange in favour of the State Government under section 48 ;
- (i) rules subject to which any highway or portion of it may be closed to or any class of traffic or the number and speed or weight of vehicles using the highway may be regulated under section 50 ;
- (j) rules subject to which plying of vehicles may be prohibited under section 51 ;
- ¹[(k) the prevention of danger arising from obstruction of view of persons using highway or from distraction of their attention, and the prevention of annoyance, danger or injury to the public;]
- (l) the prevention of obstruction, encroachment and nuisances on or near and of damages to highways ;
- (m) the proper maintenance of boundary marks demarcating highway boundaries and building and control lines ;
- (n) the prescription of various forms of applications required to be made and the forms of notices and bills required to be served on persons, the charges to be made for the supply of copies of maps, and the rent or other charges to be imposed or levied under the provisions of this Act ;
- (o) the general guidance to the Highway Authority in the discharge of its functions under this Act;
- (p) regulation or diversions of existing rights of access ;
- (q) any other matter which is to be or may be prescribed.

¹ Clause (k) was substituted for the original by Mah. 42 of 1965, s. 11(b).

72. Savings.— (1) Subject to the provisions of this section, nothing in this Act shall affect—

(a) the rights of any local authority to make any excavation for the purpose of laying, making, altering, repairing or renewing any sewer, drain, water course or other work ; or

(b) the rights of any authority appointed under any law for the time being in force for gas or water, electricity, railways, tramways or trolley vehicles to erect any support or make any excavation for the purpose of laying, making, altering, repairing or renewing any main, pipe, sluice, weir, electric line, duct, drain or other apparatus ; or

(c) any land belonging to a railway administration or belonging to or used by a person holding a licence or sanction for the generation, transformation or distribution of electricity under the Indian Electricity Act, 1910 (IX of 1910), when such land is held or used by the railway administration or such person, as the case may be, for the purpose of its railway or for generation, transformation or distribution of electricity, except in so far as they may consent thereto ; or

(d) any land within the limits of a cantonment or a port declared by or under any law made by Parliament or existing law to be a major port ;

(e) any land within the jurisdiction of a local authority under the administrative control of the Central Government :

Provided that—

(i) any restrictions in force under section 9 as to construction, formation or laying out of means of access to, or from, any road, shall without any such consent as aforesaid, extend to any such land as is specified in clause (c) in so far as the restrictions relate to means of access over or under such land to, or from, land other than land so specified ; and

(ii) any consent required for the purposes of this section shall not be unreasonably withheld and the question whether or not the consent so required is unreasonably withheld shall be determined by the State Government and the decision of the State Government on the question shall be final.

(2) Nothing in this Act shall affect any powers and duties of the telegraph authority under the provisions of the Indian Telegraph Act, 1885 (XIII of 1885).

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73. Provisions of this Act or rules to prevail over inconsistent provisions in other laws.—

Save as provided in section 72, the provisions of this Act or rules made thereunder in regard to any matter dealt with thereby shall prevail over the provisions of any other law made by the State Legislature or any law which the State Legislature is competent to make or to amend, in so far as such law is inconsistent with the said provisions or rules, and such law to the extent of such inconsistency shall cease to apply or shall not apply to any such matter.

74. Building and control lines along national highways ²[and levy of betterment charges].—

For the avoidance of doubt it is hereby declared that nothing in this Act shall apply to highways which are or have been declared by or under any law made by Parliament to be national highway:

Provided that if any highway is declared to be a national highway by or under any law made by Parliament, it shall be lawful for the State Government to fix ³* * * * * the building and control lines for different portions of the said highway under section 7 ⁴[or to levy betterment charges under section 42 on lands the value of which has increased by reason of the construction or proposed construction of such highway ;] and thereafter the provisions of this Act in so far as they apply to the restrictions on buildings between the highway boundary and the building line or between the building line and the control line and other provisions relating to such building and control lines ⁵[or as the case

¹ This *Explanation* was deleted by Mah. 37 of 1999, s. 15.

² These words were added by Mah. 42 of 1965, s. 13(d).

³ The words “or not to fix” were deleted by Mah. 42 of 1965, s. 13(a).

⁴ These words were inserted by Mah. 42 of 1965, s. 13(b).

⁵ These words were substituted for the words “shall *mutatis mutandis* apply” by Mah. 42 of 1965, s. 13(c).

may be, the provisions of this Act relating to the levy of betterment charges shall, *mutatis mutandis*, apply.]

¹[75. **Repeal and saving.**— (1) On the commencement of the Bombay Highways (Extension and Amendment) Act, 1965 (Mah. XLII of 1965), the Central Provinces and Berar Regulation of Uses of Land Act, 1948 (C. P. and Berar Act XLVII of 1948), shall stand repealed :

Provided that anything done or action taken (including any notifications or licences issued, plans deposited, or restrictions imposed, applications and rules made, permissions given, or compensation awarded) under the aforesaid Act shall, in so far as it is not inconsistent with the provisions of this Act, be deemed to have been done or taken under the corresponding provisions of this Act, and shall continue in force accordingly, unless and until superseded by anything done or any action taken under this Act.

(2) The mention of particular matters in this section shall not affect the general application to this Act of section 7 of the Bombay General Clauses Act, 1904 (Bom. I of 1904) (which relates to the effect of repeals).]

SCHEDULE

(Deleted by Mah. 24 of 1967, s. 4)

¹ Section 75 was inserted by Mah. 42 of 1965, s. 14.